

SAAS SERVICES AND PLATFORM AGREEMENT

Between

**CLOUDSTACK TECHNOLOGIES PRIVATE LIMITED
(Provider)**

and

**MERIDIAN HEALTH SERVICES INC.
(Customer)**

SAAS SERVICES AND PLATFORM AGREEMENT

This SaaS Services and Platform Agreement (this "Agreement") is made and entered into as of the Effective Date by and between:

CLOUDSTACK TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 of India, with its registered office at 91, 4th Floor, Salarpuria Magnificia, Marathahalli Outer Ring Road, Bengaluru, Karnataka 560103, India ("Provider"); and

MERIDIAN HEALTH SERVICES INC., a Delaware corporation with its principal place of business at 200 State Street, Boston, MA 02109 ("Customer").

Provider and Customer are collectively referred to as the "Parties."

WHEREAS, Provider has developed a proprietary cloud-based software-as-a-service platform for healthcare claims processing, patient data analytics, and regulatory compliance management; and

WHEREAS, Customer desires to access and use the Platform for its internal business operations, subject to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained

herein, the Parties agree as follows:

1. DEFINITIONS

1.1. "Authorized Users" means Customer's employees, independent contractors, and agents who are authorized by Customer to access and use the Platform pursuant to the terms of this Agreement.

1.2. "Customer Data" means all data, information, content, and materials, including Personal Data, that Customer or its Authorized Users upload, submit, transmit, or otherwise provide to or through the Platform, and any data, reports, or outputs derived therefrom by the Platform.

1.3. "Documentation" means Provider's standard user manuals, technical specifications, API documentation, and security whitepapers made generally available to Provider's customers.

1.4. "Personal Data" means any information relating to an identified or identifiable natural person, including "personal data" as defined under GDPR, "personal information" as defined under CCPA/CPRA, "protected health information" as defined under HIPAA, "nonpublic personal information" as defined under GLBA, and "personal data" as defined under India's DPDPA 2023.

1.5. "Platform" means Provider's proprietary cloud-based software-as-a-service platform for healthcare claims processing, patient data analytics, and regulatory compliance management, including any updates, upgrades, modifications, and enhancements made generally available by Provider.

1.6. "Subscription Term" means the period during which Customer is authorized to access and use the Platform, as set forth in the applicable Order Form.

2. PLATFORM LICENSE AND ACCESS

2.1. Subject to Customer's compliance with the terms and conditions of this Agreement and payment of all applicable fees, Provider grants Customer a non-exclusive, non-transferable, non-sublicensable, revocable right during the Subscription Term to: (a) access and use the Platform solely for Customer's internal business operations; and (b) permit Authorized Users to access and use the Platform on Customer's behalf, provided Customer remains fully liable for its Authorized Users' compliance with this Agreement.

2.2. Customer shall not, and shall not permit any third party to: (a) copy,

modify, adapt, translate, or create derivative works of the Platform or Documentation; (b) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, algorithms, or underlying structure of the Platform; (c) rent, lease, sublicense, distribute, sell, or otherwise transfer the Platform to any third party; (d) use the Platform for the benefit of any third party, including on a service bureau, time-sharing, or application service provider basis; (e) remove, obscure, or alter any proprietary notices, labels, or marks on the Platform; (f) access or use the Platform to build a competitive product or service; (g) use the Platform in violation of any applicable law or regulation; or (h) circumvent or bypass any security mechanism, access control, or usage limitation of the Platform.

3. DATA PROCESSING, SECURITY, AND PRIVACY

3.1. The Parties acknowledge and agree that, as between them, Customer is the "Data Controller" (or equivalent concept under applicable law) and Provider is the "Data Processor" (or equivalent concept) with respect to all Personal Data contained within Customer Data. Provider shall process Personal Data only: (a) as necessary to provide the Platform and perform its obligations under this Agreement; (b) in accordance with Customer's documented written instructions; and (c) as required by applicable law.

3.2. Provider shall implement and maintain administrative, physical, and technical safeguards designed to protect the confidentiality, integrity, and availability of Customer Data. Such safeguards shall include, at a minimum:

(a) Encryption: Customer Data shall be encrypted in transit using TLS 1.2 or higher. Customer Data at rest shall be encrypted using AES-256 or equivalent. All cryptographic keys shall be rotated at least every ninety (90) days.

(b) Access Controls: Role-based access controls with least-privilege principles enforced across all Provider systems and networks. Multi-factor authentication required for all administrative access and all remote access to systems storing or processing Customer Data. Unique user IDs with strong password policies. Quarterly access reviews with automated revocation of inactive accounts after thirty (30) days. All access to Customer Data logged with audit trails retained for a minimum of one (1) year.

(c) Network Security: Defense-in-depth network architecture with network segmentation isolating Customer Data environments from corporate IT systems. Next-generation firewalls with intrusion detection and prevention systems at

all network boundaries. Distributed denial-of-service protection at the application and network layers. Continuous network monitoring with security information and event management (SIEM) correlation.

(d) Vulnerability Management: Continuous automated vulnerability scanning of all production systems, networks, and applications. Annual independent third-party penetration testing. Critical and high-severity vulnerabilities remediated within thirty (30) days and sixty (60) days of discovery, respectively.

(e) Business Continuity: Documented and tested business continuity and disaster recovery plans, tested at least annually. Recovery Time Objective (RTO) of eight (8) hours and Recovery Point Objective (RPO) of one (1) hour for the Platform. Geographically distributed data centers with real-time data replication.

(f) Sub-processor Management: Provider shall maintain a current list of all sub-processors engaged in the delivery of the Platform. Provider shall notify Customer of any new sub-processor engagement. All sub-processors shall be bound by written agreements imposing data protection obligations substantially similar to those set forth in this Agreement. Provider shall remain fully liable for the acts and omissions of its sub-processors.

3.3. Provider shall not: (a) sell, rent, or lease Customer Data to any third party; (b) use Customer Data for any purpose other than providing the Platform and related support services; or (c) disclose Customer Data to any government authority except as required by law.

3.4. Data Subject Rights and Breach Notification:

(a) Provider shall provide Customer with reasonable cooperation and assistance in responding to data subject requests under GDPR, CCPA/CPRA, DPDPA, HIPAA, and other applicable data protection laws;

(b) Provider shall notify Customer without undue delay, and in no event later than seventy-two (72) hours, after confirming a Security Incident involving Customer Data, providing: (i) a description of the nature and scope of the incident; (ii) the categories and approximate number of data subjects and records affected; (iii) the likely consequences of the incident; and (iv) the measures taken or proposed to address the incident.

3.5. Compliance Certifications:

(a) Provider shall maintain, at its own expense: (i) SOC 2 Type II certification covering the Platform; (ii) ISO/IEC 27001:2022 certification; and (iii) HIPAA compliance attestation;

(b) Upon Customer's request, Provider shall complete a security questionnaire based on industry standards (such as the Cloud Security Alliance Consensus Assessments Initiative Questionnaire) within forty-five (45) business days.

4. SERVICE LEVEL COMMITMENTS

4.1. Provider shall use commercially reasonable efforts to make the Platform available with a Monthly Uptime Percentage of at least 99.5%, excluding Excused Downtime. "Monthly Uptime Percentage" is calculated as: $(\text{Total Minutes in Month} - \text{Total Downtime Minutes}) / \text{Total Minutes in Month} \times 100$.

4.2. "Excused Downtime" means downtime resulting from: (a) scheduled maintenance, provided Provider gives Customer at least twenty-four (24) hours advance notice; (b) emergency maintenance required to address critical security vulnerabilities; (c) Customer's equipment, software, network connections, or other technology; (d) force majeure events as described in Section 13; or (e) Customer's breach of this Agreement or misuse of the Platform.

4.3. If Provider fails to meet the Monthly Uptime Percentage in any calendar month, Customer shall be entitled to the following service credits:

- (a) Monthly Uptime Percentage below 99.5% but at or above 99.0%: Service credit equal to 5% of the monthly subscription fee for the affected month;
- (b) Monthly Uptime Percentage below 99.0% but at or above 95.0%: Service credit equal to 10% of the monthly subscription fee for the affected month;
- (c) Monthly Uptime Percentage below 95.0%: Service credit equal to 25% of the monthly subscription fee for the affected month.

4.4. Service credits shall be Customer's sole and exclusive remedy for any failure to meet the service level commitments. Service credits must be claimed in writing within thirty (30) days of the month in which the SLA was missed.

5. FEES, PAYMENT, AND TAXES

5.1. Customer shall pay Provider the fees set forth in each Order Form. Unless otherwise specified in the applicable Order Form: (a) all fees are denominated and payable in United States Dollars; (b) fees are invoiced annually in advance; and (c) payment is due within thirty (30) days of the invoice date.

5.2. Late payments shall bear interest at the lesser of 1.5% per month or the maximum rate permitted by applicable law. Provider may suspend access to the

Platform if any fees remain unpaid for more than thirty (30) days after the due date, provided Provider has given Customer at least five (5) business days prior written notice.

5.3. All fees are exclusive of applicable taxes. Customer shall be responsible for all sales, use, value-added, goods and services, withholding, and similar taxes (other than taxes based on Provider's net income).

5.4. Except as expressly set forth in this Agreement, all fees are non-cancellable and non-refundable. Fees for any renewal Subscription Term shall be at Provider's then-current list prices unless otherwise agreed in writing.

6. OWNERSHIP AND INTELLECTUAL PROPERTY

6.1. As between the Parties, Provider owns and retains all right, title, and interest in and to: (a) the Platform (including all software, code, algorithms, user interfaces, APIs, and Documentation); (b) all improvements, enhancements, modifications, and derivative works of the Platform; (c) all de-identified, aggregated data derived from use of the Platform that does not identify Customer or any individual natural person ("Aggregated Data"); and (d) all intellectual property rights embodied in any of the foregoing.

6.2. As between the Parties, Customer owns and retains all right, title, and interest in and to Customer Data. Customer grants Provider a non-exclusive, worldwide, royalty-free, fully paid-up license during and after the Subscription Term to: (a) host, copy, transmit, and display Customer Data as necessary to provide the Platform; and (b) use Aggregated Data for Provider's business purposes, including improving and enhancing the Platform, developing new products and services, training machine learning models, and publishing industry research, provided such Aggregated Data cannot reasonably be re-identified to identify Customer or any individual.

7. CONFIDENTIALITY

7.1. Each Party (the "Receiving Party") agrees to protect the Confidential Information of the other Party (the "Disclosing Party") with the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable standard of care. Neither Party shall use or disclose the other Party's Confidential Information except as necessary

to perform its obligations or exercise its rights under this Agreement.

7.2. The obligations in Section 7.1 shall not apply to information that: (a) is or becomes publicly available through no breach by Receiving Party; (b) was rightfully in Receiving Party's possession prior to disclosure; (c) is rightfully obtained by Receiving Party from a third party without restriction; or (d) is independently developed by Receiving Party without reference to Confidential Information.

7.3. If Receiving Party is required by law to disclose Confidential Information, it shall: (a) give Disclosing Party prompt written notice, if legally permitted; (b) limit disclosure to the minimum legally required; and (c) cooperate with Disclosing Party in seeking confidential treatment or a protective order.

8. INDEMNIFICATION

8.1. Provider shall indemnify, defend, and hold harmless Customer and its officers, directors, employees, and agents from and against any third-party claim alleging that the Platform infringes or misappropriates any intellectual property rights of such third party. If the Platform becomes, or in Provider's opinion is likely to become, the subject of an infringement claim, Provider may, at its option and expense: (a) procure for Customer the right to continue using the Platform; (b) modify the Platform to make it non-infringing while retaining substantially equivalent functionality; (c) replace the Platform with a substantially equivalent non-infringing alternative; or (d) if (a), (b), and (c) are not commercially reasonable, terminate this Agreement and refund to Customer a pro-rata portion of any prepaid fees.

8.2. Customer shall indemnify, defend, and hold harmless Provider from and against any third-party claim arising from: (a) Customer Data, including any claim that Customer Data infringes or violates any third party's rights or applicable law; (b) Customer's use of the Platform in violation of applicable law; or (c) Customer's breach of Section 2.2.

8.3. The indemnified Party shall: (a) give the indemnifying Party prompt written notice of any claim; (b) give the indemnifying Party sole control of the defense and settlement; and (c) provide reasonable cooperation, at the indemnifying Party's expense.

9. LIMITATION OF LIABILITY

9.1. EXCEPT FOR A PARTY'S INDEMNIFICATION OBLIGATIONS, A PARTY'S BREACH OF CONFIDENTIALITY, OR A PARTY'S GROSS NEGLIGENCE, FRAUD, OR WILLFUL MISCONDUCT, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOST REVENUE, LOST DATA, LOSS OF GOODWILL, OR BUSINESS INTERRUPTION, HOWEVER CAUSED AND REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9.2. EXCEPT FOR A PARTY'S INDEMNIFICATION OBLIGATIONS OR A PARTY'S GROSS NEGLIGENCE, FRAUD, OR WILLFUL MISCONDUCT, EACH PARTY'S TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER TO PROVIDER DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

10. REPRESENTATIONS, WARRANTIES, AND COVENANTS

10.1. Each Party represents and warrants that: (a) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of incorporation or formation; (b) it has full power and authority to enter into this Agreement and to perform its obligations hereunder; and (c) this Agreement has been duly authorized, executed, and delivered and constitutes a valid and binding obligation, enforceable in accordance with its terms.

10.2. Provider represents and warrants that: (a) the Platform will perform materially in accordance with the Documentation under normal use; (b) Provider will not materially decrease the functionality of the Platform during the Subscription Term; and (c) the Platform does not contain any virus, malware, backdoor, time bomb, or other malicious code.

10.3. EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, PROVIDER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, OR ACCURACY OF DATA. THE PLATFORM IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS.

11. INSURANCE

11.1. Provider shall maintain, at its own expense, the following minimum insurance coverage throughout the Subscription Term and for a period of two (2) years thereafter:

- (a) Commercial General Liability: \$2,000,000 per occurrence and \$5,000,000 in the aggregate;
- (b) Technology Errors and Omissions / Professional Liability: \$5,000,000 per claim and in the aggregate;
- (c) Cyber Liability / Privacy and Network Security: \$5,000,000 per claim and in the aggregate;
- (d) Workers' Compensation and Employers' Liability: As required by applicable law, with Employers' Liability limits of not less than \$1,000,000.

11.2. Upon Customer's request, Provider shall provide certificates of insurance within thirty (30) business days.

12. TERM, TERMINATION, AND TRANSITION

12.1. This Agreement commences on the Effective Date and continues for the duration of the Subscription Term. The Subscription Term shall automatically renew for successive periods equal in length to the expiring term, unless either Party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

12.2. Either Party may terminate this Agreement: (a) upon thirty (30) days written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within such 30-day period; (b) immediately upon written notice if the other Party files for, or has filed against it, a petition in bankruptcy, or makes an assignment for the benefit of creditors; or (c) as otherwise expressly provided in this Agreement.

12.3. Upon termination or expiration of this Agreement, Provider shall, within thirty (30) days: (a) make Customer Data available to Customer for electronic retrieval in a standard, machine-readable format; (b) securely and permanently delete all Customer Data from Provider's systems, except for copies retained in encrypted backups that are inaccessible to Provider's personnel and are scheduled for deletion in the ordinary course as part of Provider's backup rotation (not to exceed ninety (90) days); and (c) provide Customer with a written certification of such deletion upon request.

12.4. During the thirty (30) day period following termination, Provider shall provide, at Customer's request and at Provider's then-current time and materials rates, reasonable transition assistance, including data migration support, to facilitate Customer's orderly transition to an alternative

solution.

13. FORCE MAJEURE

13.1. Neither Party shall be liable for any failure or delay in performance (other than payment obligations) arising from circumstances beyond its reasonable control, including acts of God, natural disasters, war, terrorism, civil unrest, epidemic or pandemic, governmental action, fire, flood, earthquake, telecommunications failures, or internet disruptions; provided that the affected Party gives the other Party prompt notice and uses diligent efforts to mitigate the effects and resume performance. If a force majeure event continues for more than sixty (60) days, the unaffected Party may terminate this Agreement upon written notice.

14. COMPLIANCE WITH LAWS

14.1. Each Party shall comply with all applicable laws, regulations, and industry standards in connection with its performance under this Agreement, including: (a) United States federal, state, and local laws; (b) the laws of the Republic of India; (c) laws of any other jurisdiction applicable to the processing of Customer Data; (d) export control and economic sanctions laws; and (e) anti-corruption and anti-bribery laws, including the U.S. Foreign Corrupt Practices Act and the Prevention of Corruption Act, 1988 of India.

15. GOVERNING LAW AND DISPUTE RESOLUTION

15.1. This Agreement shall be governed by and construed in accordance with the laws of the Republic of India, without giving effect to conflict of laws principles.

15.2. Any dispute arising out of or relating to this Agreement shall be resolved through binding arbitration administered by the Singapore International Arbitration Centre (SIAC) in accordance with the SIAC Rules in effect at the time of the arbitration. The arbitration shall be conducted in English, before a panel of three (3) arbitrators. The seat of arbitration shall be Singapore. The arbitration award shall be final and binding, and judgment on the award may be entered in any court of competent jurisdiction.

15.3. Notwithstanding Section 15.2, either Party may seek injunctive or other equitable relief in any court of competent jurisdiction to protect its Confidential Information, intellectual property rights, or other proprietary interests.

16. NON-COMPETE AND NON-SOLICITATION

16.1. During the Subscription Term and for a period of twelve (12) months following termination or expiration of this Agreement, Customer shall not, directly or indirectly: (a) develop, market, sell, or distribute any product or service that competes with the Platform; (b) solicit, induce, or hire any employee or independent contractor of Provider who was involved in the performance or delivery of the Platform; or (c) solicit the business of any customer or client of Provider with whom Customer had contact or about whom Customer obtained Confidential Information through the relationship established by this Agreement.

16.2. The restrictions in Section 16.1(b) shall not apply to general public solicitations not targeted at Provider's personnel.

17. GENERAL PROVISIONS

17.1. Assignment. Neither Party may assign or transfer this Agreement, by operation of law or otherwise, without the other Party's prior written consent, except that either Party may assign this Agreement to an affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets or equity, provided the assignee assumes all obligations in writing. Any attempted assignment in violation of this Section is void.

17.2. Relationship of the Parties. The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties.

17.3. Notices. All notices shall be in writing and sent to the addresses set forth in the preamble, and shall be deemed given: (a) upon delivery, if personally delivered; (b) upon confirmation of receipt, if sent by email with confirmed receipt; or (c) five (5) business days after mailing, if sent by registered or certified mail, return receipt requested.

17.4. Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, or if modification is not possible, severed from this Agreement, and the remaining provisions shall continue in full force and effect.

17.5. Entire Agreement. This Agreement, together with all Order Forms, exhibits, and schedules, constitutes the complete agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral. No modification shall be effective unless in writing and signed by both Parties.

17.6. Waiver. No waiver of any provision of this Agreement shall be effective

unless in writing and signed by the Party against whom enforcement is sought. No failure or delay by either Party in exercising any right shall operate as a waiver thereof.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

CLOUDSTACK TECHNOLOGIES PVT LTD

MERIDIAN HEALTH SERVICES INC.

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____
